40 YEARS OF BHOPAL GAS TRAGEDY

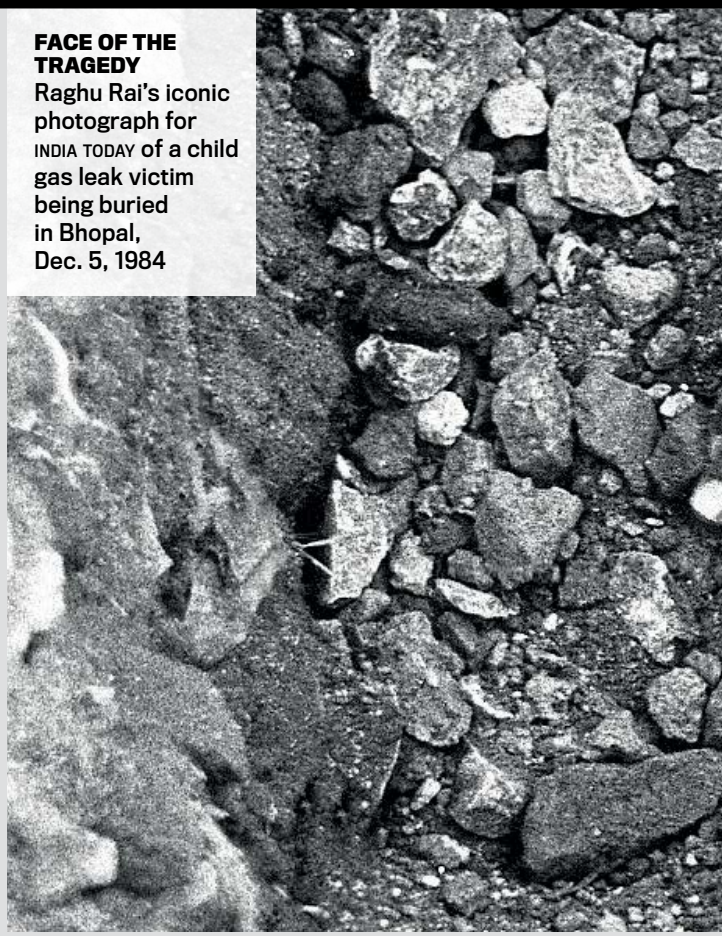
TOXIC LEGACY LINGERS

By Rahul Noronha

The night of December 2, 1984, remains etched in public memory as one of the world's worst industrial disasters. Bhopal, the city, became a synonym for unforgivable human folly. Men, women and children ran through the bylanes of the old city, choking and blinded by a cloud of poisonous Methyl Isocyanate gas leaking from the pesticide plant of the American corporation Union Carbide. Complaints of burning eyes, breathlessness, nausea and abdominal cramps overwhelmed the Madhya Pradesh capital's modest medical infrastructure within hours. By morning, thousands were dead and hundreds of thousands suffered injuries that would last a lifetime. Four decades later, victims and their families are still waiting for closure on multiple fronts. Legal accountability, environmental cleanup and rehabilitation still remain unresolved issues, with many losing hope that justice will ever be served.

Legal accountability has been elusive. After years of court delays, eight accused were convicted in 2010 under Sections 304A (causing death by negligence), 336, 337, 338 and 35 of the Indian Penal Code and sentenced to two years in jail, but all were granted bail immediately. Four of the convicted have since died. The case continues in the court of the District Judge, Bhopal, with the Central Bureau of Investigation as the prosecuting agency. Activists and survivors lament the slow pace of justice, which has made accountability seem increasingly out of reach.

Meanwhile, the struggle for adequate medical relief has followed a similarly disheartening trajectory. The state government created hospitals and clinics specifically for gas victims, besides a separate Department of Bhopal Gas Tragedy Relief and Rehabilitation. In 1991, the Supreme Court ordered Union Carbide to set up a 500-bed state-of-the-art hospital, leading to the creation of the Bhopal Memorial Hospital and Research Centre (BMHRC), albeit with only 350 beds. Today, victims note a sharp decline in resource allocation for hos-



FACE OF THE TRAGEDY Raghu Rai's iconic photograph for INDIA TODAY of a child gas leak victim being buried in Bhopal, Dec. 5, 1984

JUSTICE DELAYED

Forty years on, a look at the Bhopal gas tragedy's devastating toll, claims, compensation gaps, medical infrastructure and the ongoing fight for justice

DEATHS
15,342*

- Claimed: **22,151**
- Compensated: **5,479****
- Amount paid: **₹10 lakh**
- Total outgo: **₹547.9 cr.**

**As per MP govt **GoI*

TEMPORARY MINOR INJURIES

- Claimed: **964,774**
- Compensated: **521,350**
- Amount paid: **₹50,000**
- Total outgo: **₹2,606.75 cr.**

PERMANENT DISABILITY

- Claimed: **3,252**
- Compensated: **3,241**
- Amount paid: **₹5 lakh**
- Total outgo: **₹162 cr.**

TEMPORARY DISABILITY

- Claimed: **33,691**
- Compensated: **33,672**
- Amount paid: **₹1 lakh**
- Total outgo: **₹336.72 cr.**

Compensations were paid between 1993 and 2011